

ANONYMIZED VERSION OF CLAIM

1. Introduction

1.1 The Claimant, a market risk specialist who is on the autism spectrum, brings a claim for victimisation contrary to sections 27 and 39(3)(a) of the Equality Act 2010 arising from his application for the role of Market Risk FRTB – Implementation & Analytics – Senior Associate / Vice President (Job Number: 210718502) ("the Role") in March–April 2026.

1.2 The central contention is that the Respondent assessed the Claimant's CV as meriting progression, then—during its own screening call—the recruiter stated the Respondent could not progress the application because the Claimant had been dismissed by his previous employer. The Claimant challenged this, asking the recruiter to double-check whether she really could not progress him, and disclosed a live Employment Tribunal claim for disability discrimination against his former employer (the protected act), stating that he had done nothing wrong. The call then continued, with the recruiter proceeding to standard screening questions. The Claimant was subsequently excluded from interview without any documented reason. The process moved to offer stage with other candidates while the Claimant's application was described as "on hold"—a rejection in substance, delivered in soft language. The job advert remained live. No formal rejection has ever been issued. The logical inference is that the protected act was the reason for the exclusion.

2. Who is involved

2.1 The Claimant is a finance professional specialising in market risk.

2.2 The Respondent is [a large financial services firm], whose London office is at [address redacted].

2.3 At all relevant times, [a named recruiter] (Senior Recruitment Partner) acted on the Respondent's behalf in the recruitment process. Her knowledge and actions are treated in law as the Respondent's knowledge and actions.

3. Background

3.1 The Claimant was dismissed by his previous employer, [a named financial services company].

3.2 The Claimant is challenging that dismissal in an Employment Tribunal claim for disability discrimination because of his autism (case number [redacted]). That claim is a protected act under the Equality Act 2010.

3.3 The Role was advertised by the Respondent. The Claimant applied on 5 March 2026 and received confirmation of receipt the same day. The Role is a senior position. As of 5 May 2026, the advert was still live and accepting applications.

4. What happened – the key events

CV review and invitation to screening

4.1 On 12 March 2026, the Respondent emailed the Claimant stating that it had reviewed his application and that it had 'sparked our team's interest.' A screening call was arranged as a result. The Claimant was therefore assessed as meriting further progression before any disclosure had taken place.

4.2 In his email reply the same day, the Claimant proposed times for the screening call and stated the following adjustment to improve his performance: "Clear objective definition: I perform best when the intended focus or success criteria of a question are explicit."

The screening call – 13 March 2026

4.3 During the call, the recruiter asked the Claimant directly why he had left his previous employment. The Claimant told her he had been dismissed.

4.4 Immediately, the recruiter stated that the Respondent could not progress his application because of that dismissal. At that point, the Claimant had not yet mentioned the Tribunal claim.

4.5 In response to her negative reaction, the Claimant explained that his dismissal was being challenged in an Employment Tribunal for disability discrimination (case number [redacted]) and that he had not done anything wrong. He asked her to double-check whether she really could not progress his application.

4.6 The call continued. The recruiter did not repeat her earlier statement that the Respondent could not progress his application. She proceeded with the screening, including questions about his motivation for the role and his salary expectations.

4.7 By the end of the call, the Respondent (through the recruiter) knew both about the dismissal and about the Claimant's open disability discrimination claim.

The outcome

4.8 On 23 March 2026, the recruiter telephoned the Claimant. She told him that four of six screened candidates had been selected to proceed to interview. The Claimant was not among them. She described his application as "on hold." She provided no documented or substantive reason for his exclusion from the interview stage. The Respondent has never provided the Claimant with a formal rejection. His candidate profile on the Respondent's application portal continues to show his status as "under consideration."

4.9 The only material new information introduced between the Respondent's decision to progress the Claimant (on or before 12 March 2026) and his exclusion from the

interview stage (on 23 March 2026) was what he disclosed during the screening call: his dismissal by his former employer, and his live Employment Tribunal claim for disability discrimination against that employer (the protected act).

Later communications

4.10 The Claimant followed up by email several times. He:

- Asked for the application to be progressed
- Raised the possibility of unconscious bias because of his dismissal and Tribunal claim
- Asked the recruiter to confirm in writing that the hiring team saw his CV, requested a screening call, learned about his dismissal, and then did not progress him

4.11 On 21 April 2026, the recruiter replied by email. She stated: "I have called you some time ago already - the team decided to move forward with other candidates, we are now on the offering stage." By referencing the earlier call of 23 March 2026, she treated that call as the moment the decision had been communicated. The email confirms that the team had moved forward with other candidates and that the process had reached offer stage. The Claimant was not among those progressed. No reason for the decision was provided.

4.12 On 23 April 2026, the recruiter telephoned the Claimant again. She confirmed that the FRTB role was at offer stage (as she had stated in her email of 21 April 2026). She also told him that his enquiries about model risk roles would not be progressing, as the relevant hiring team had reviewed his CV and decided not to invite him for interview. The Claimant asked her about the decision-making process for the FRTB role. She indicated that the hiring team had seen his CV, requested the screening call, and then—after receiving the screening results—his application was not progressed further.

4.13 As of 5 May 2026, the Claimant has received no further communication from the Respondent. His application status remains "under consideration" on the portal. No formal rejection has been issued. The job advert remained live throughout this period, even after the process was described as being at offer stage.

5. Legal claim – Victimisation

Protected acts

5.1 The Claimant's live Employment Tribunal claim against his former employer (case number [redacted]) is a protected act under section 27(2)(a) of the Equality Act 2010.

5.2 Additionally, when the Claimant told the recruiter during the screening call that he didn't do anything wrong in the context of disclosing the Tribunal claim, he was making

an allegation that his former employer had contravened the Equality Act. That statement is independently a protected act under section 27(2)(d).

5.3 Both protected acts were disclosed to the recruiter, who was acting as the Respondent's agent. The Respondent is treated as having full knowledge of them from that moment.

Detriment

5.4 The Respondent did not invite the Claimant to interview for the Role. Other candidates advanced to that stage. The Claimant was excluded from meaningful progression in the process. That is a material disadvantage – a detriment under section 27(1)(b). The Respondent's conduct was therefore unlawful victimisation contrary to sections 39(3)(a) and 27 of the Equality Act 2010.

Causation – why the burden of proof shifts to the Respondent

5.5 The following facts, taken together, shift the burden of proof to the Respondent under section 136 of the Equality Act 2010:

- The Respondent reviewed the Claimant's CV and made an affirmative decision to progress him to screening. His CV was good enough for a senior role.
- The only material new information that appeared after that decision was what he disclosed during screening – the dismissal and the protected acts.
- The disclosure of the protected act was compelled by the Respondent's own process: the recruiter asked about his departure, reacted adversely to the dismissal, and then continued with the screening only after the Claimant asked her to double-check and disclosed the protected act.
- The screening results, compiled by the recruiter with full knowledge of the protected acts, were passed to the hiring team. The team then excluded the Claimant without any documented reason.
- Despite the Claimant's repeated requests, the Respondent has provided no substantive written reason for his exclusion. The absence of a legitimate reason is consistent with the true reason being one it cannot state.
- The recruiter's email of 21 April 2026 confirms that she treated the 23 March 2026 call as the moment the decision was communicated. The decision was that the team had moved forward with other candidates. The "on hold" label was not a genuine status. It was a rejection in substance, delivered in soft language.
- The job advert remained live even after the Claimant was told the process was at offer stage. This is inconsistent with a straightforward, merit-based selection of other candidates.

5.6 In light of these facts, the Respondent must prove that the Claimant's protected acts played no part whatsoever in the decision to exclude him from interview. The Claimant says the Respondent cannot do so.

6. Remedy Sought

6.1 A declaration that the Respondent has contravened sections 39(3)(a) and 27 of the Equality Act 2010.

6.2 Compensation for injury to feelings, including aggravated damages.

6.3 Compensation for financial loss, including loss of the opportunity to be appointed to the Role (assessed on a loss of a chance basis).

6.4 Interest on the above sums.

6.5 Such further or other relief as the Tribunal thinks just.